

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

EHSAN HAMIDI,

Petitioner

VS.

ALLISON PAZ,

Respondent

) Case Number: FDI-25-801833

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), ORDER FOR
CUSTODY EVALUATION, PLAY THERAPY AND PRESCHOOL

TENTATIVE RULING

**The parties are ordered to appear in person or via Zoom Video on 9/15/2026 at 11am in
Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and
Instructions for Remote Appearance in San Francisco Family Court set forth above.**

A. Procedural History

- 1) Petitioner Ehsan Hamidi (Father) and Respondent Allison Paz (Mother) have one minor child together, Esther (DOB 8/16/2023, age 3). On 7/23/2025, Mother filed a request for a Domestic Violence Restraining Order against Father seeking protection for herself and Esther. Pursuant to a Stipulation and Order filed 12/8/2025, the parties agreed, among other things, that neither party shall solicit or initiate in-person contact with the other party. The parties also agreed to share joint legal and physical custody of Esther on a 2-2-3 schedule and to select a child custody mediator to assist in developing a comprehensive parenting plan.
- 2) On for hearing is Mother's request for the parenting time schedule to be "temporarily altered so that [Father] have custodial time with Esti" every other Saturday at 9am to Sunday at 6pm and

1 Wednesday from 3:30pm to 6:30pm. She also seeks an order for play therapy for Esther, an order
2 for Esther to attend preschool rather than daycare, and an order for a child custody evaluation on
3 the issues of: (a) legal custody; (b) preschool choice; (c) parental access; (d) the parties' ability
4 and willingness to support the other party's religious and cultural values; and (e) whether
5 ancillary services may be of benefit to either party or to Esther.

- 6 3) Father has filed a response in which he disagrees with Mother's characterization of Esther's
7 behavior and states he has worked in good faith to talk to Mother about issues relating to play
8 therapy, preschool, and other issues. Father states he does not believe a child custody evaluation
9 is necessary for the same reasons he did not think one was necessary last year; he states, "it is
10 costly and risks reopening an arrangement Judge Costin already found sound." He asks for the
11 Court to: (a) decline to modify the 2-2-3 schedule "absent a more complete evidentiary record
12 showing a material change in circumstances"; (b) decline to order play therapy without a
13 threshold neutral clinical assessment of need by an in-network child therapist; (c) order the parties
14 to resolve the preschool dispute through coparenting counseling already provided for in the
15 12/8/2025 Stipulation and Order; (d) order the parties to participate in custody mediation to
16 develop a full parenting plan in good faith, per the 12/8/2025 Stipulation and Order; (f) order
17 Father to be permitted to relocate with Esther within 50 minutes to the mid-peninsula; (g) reserve
18 the issue of monetary sanctions and attorney fees with respect to any allegation the Court finds to
19 have been knowingly false.
- 20 4) On 9/8/2026, Mother filed a reply as well as a declaration from her father regarding what he
21 observed during a custody exchange. On 9/10/2026, Father filed a (a) notice of intent to present
22 live testimony; (b) objection to the reply declaration; and (c) objections to and requests to strike
23 portions of Mother's request and reply.

24 **B. Findings and Orders**

- 25 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
26 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
27 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
28 child is the United States.

1 **2) The parties are ordered to appear in person or via Zoom Video on 9/15/2026 at 11am in**
2 **Department 404.**